

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF ZAYTSEVA AND OTHERS v. RUSSIA

(Applications nos. 41136/17 and 10 others –
see appended list)

JUDGMENT

STRASBOURG

2 March 2023

This judgment is final but it may be subject to editorial revision.



In the case of Zaytseva and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Darian Pavli*, President*,
Ioannis Ktistakis,
Andreas Zünd*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 2 February 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the lack of impartiality of the tribunal in view of the absence of the prosecuting party in administrative-offence proceedings. Some applicants also raised other complaints under the provisions of the Convention and its Protocols.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. ALLEGED VIOLATION OF ARTICLE 6 § 1 OF THE CONVENTION

6. The applicants complained principally of the lack of impartiality of the tribunal in view of the absence of the prosecuting party in administrative-offence proceedings. They relied, expressly or in substance, on Article 6 § 1 of the Convention.

7. The relevant principles of the Court's case-law concerning the requirement of impartiality under Article 6 § 1 of the Convention can be found in the leading case of *Karelin v. Russia* (no. 926/08, §§ 51-57,

20 September 2016, with further references). In that case the Court assessed the national rules of administrative procedure and concluded that the statutory requirements allowing for the national judicial authorities to consider an administrative offence case which falls within the ambit of Article 6 of the Convention under its criminal limb, in the absence of a prosecuting authority, was incompatible with the principle of objective impartiality set out in Article 6 of the Convention.

8. Having examined all the material submitted to it, having dismissed the Government's objection of non-exhaustion of domestic remedies (see *Smadikov v. Russia* (dec.), no. 10810/15, 31 January 2017) and having due regard to the issue of compliance with the six-month period under Article 35 § 1 of the Convention (see *Saakashvili* v. Georgia (dec.), nos. 6232/20 and 22394/20, §§ 46-59, 1 March 2022, in which the Court addressed the COVID-related extension of the period in question), the Court has not found any fact or argument capable of persuading it to reach a different conclusion on the admissibility and merits of the complaints in the present case.

9. These complaints are therefore admissible and disclose a breach of Article 6 § 1 of the Convention.

III. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

10. Some applicants submitted other complaints which also raised issues under the Convention and Protocols thereto, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention and Protocols thereto in the light of its well-established case-law (see *Frumkin v. Russia*, no. 74568/12, §§ 81-142, 5 January 2016, concerning disproportionate measures taken by the authorities against organisers and participants of public assemblies, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 84-138, 10 April 2018, regarding unlawful deprivation of liberty, and *Korneyeva v. Russia*, no. 72051/17, §§ 62-65, 8 October 2019, related to the right not be tried or punished twice in the criminal proceedings).

11. As regards other complaints under Article 6 of the Convention about the administrative-offence proceedings, submitted by the applicants, the Court, having reached the conclusion about the lack of impartiality of the tribunal under Article 6 of the Convention (see paragraph 9 above), does not consider it necessary to examine them separately.

IV. APPLICATION OF ARTICLE 41 OF THE CONVENTION

12. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

13. Regard being had to the documents in its possession and to its case-law (see, in particular, *Kuratov and Others v. Russia* [Committee], nos. 24377/15 and 2 others, 22 October 2019), the Court considers it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Declares* the complaints concerning the lack of impartiality of the tribunal in view of the absence of the prosecuting party in administrative-offence proceedings and the other complaints under well-established case-law of the Court, as set out in the appended table, admissible and *decides* that it is not necessary to examine separately further complaints under Article 6 of the Convention raised by some applicants about administrative-offence proceedings;

3. *Holds* that these complaints disclose a breach of Article 6 § 1 of the Convention concerning the lack of impartiality of the tribunal in view of the absence of the prosecuting party in administrative-offence proceedings;

4. *Holds* that there has been a violation of the Convention and Protocols thereto as regards the other complaints raised under well-established case-law of the Court (see appended table);

5. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 2 March 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Darian Pavli
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 6 § 1 of the Convention
(lack of impartiality of the tribunal in view of the absence of the prosecuting party in administrative-offence proceedings)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Penalty	Date of final domestic decision Name of court	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	41136/17 23/05/2017	**Nadezhda Andreyevna ZAYTSEVA** 1990	Kostyushev Vladimir Yuryevich Moscow	suspension of driving licence, 1 year	21/03/2017, Ivanovo Regional Court		1,000
2.	53355/17 14/07/2017	**Vladimir Petrovich YEFANOV** 1955		administrative fine of RUB 30,000, suspension of driving licence, 1 year 6 months	04/07/2017, Aleysk Town Court of Altay Region		1,000
3.	3196/18 18/12/2017	**Leonid Vladimirovich NOVIKOV** 1989	Pyshkin Valentin Valentinovich St Petersburg	administrative detention of 4 days, administrative fine of RUB 10,000	20/06/2017, St Petersburg City Court 04/07/2017, St Petersburg City Court	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and escort to the police station on 12/06/2017-13/06/2017 in excess of 3 hours for the sole purpose of drawing up a record of administrative offence; detention until escort to the court on 13/06/2017. The applicant raised the complaint in the course of the administrative proceedings against him. Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - final decision - 20/06/2017, St Petersburg City Court, Art. 19.3 § 1 CAO; 4/07/2017, St Petersburg City Court, Art. 20.2 § 5 CAO; overlap of the facts constituting the basis for the applicant's prosecution in the second set of proceedings with substantially the same facts underlying his conviction in the first set of proceedings	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Penalty	Date of final domestic decision Name of court	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
4.	28465/18 30/05/2018	**Ildar Renatovich MUKHAMADIYEV** 1997	Memorial Human Rights Centre Moscow	administrative fine of RUB 10,000	30/11/2017, Moscow City Court	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest, escort to the police station and subsequent detention on 12/06/2019 - the applicant complains that there were no reasons to take him to the police station (the record of the administrative offence could be complied on the spot, see Korneyeva v. Russia, no 72051/17, § 34, 8 October 2019). The app raised this complaint before the domestic courts (see the app's appeal, the judgment of the Moscow City Court of 30/11/2017)	3,900
5.	3571/19 03/12/2018	**Sergey Yuryevich STEPANOV** 1986	Kulakov Yevgeniy Valeryevich Arkhangelsk	community service, 150 hours	20/09/2018 Isakogorskiy District Court of Arkhangelsk		1,000
6.	25953/19 06/05/2019	**Yuriy Mikhaylovich NIKOLAYEV** 1971		administrative fine of RUB 30,000, suspension of driving licence, of 1 year and 10 months	16/11/2018, Sverdlovskiy District Court of Belgorod		1,000
7.	55309/19 09/10/2019	**Lev Aleksandrovich PONOMAREV** 1941	Zboroshenko Nikolay Sergeyevich Mytishchi	administrative fine of RUB 300,000	04/07/2019, Moscow City Court		5,000
8.	32730/20 13/07/2020	**Bogdan Aleksandrovich YATSYNOV** 2000	Zakhvatov Dmitriy Igorevich Moscow	administrative fine of RUB 10,000	22/01/2020 Moscow City Court	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 10/03/2019 in excess of 3 hours for the sole purpose of drawing a record of administrative offence, Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Manifestation against the isolation of Internet	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Penalty	Date of final domestic decision Name of court	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
						Moscow 10/03/2019 article 20.2 § 5 of CAO fine of RUB 10,000 Moscow City Court	
9.	33299/20 20/07/2020	**Sergey Anatolyevcih PAKHOMOV** 1973		suspension of driving licence, for 19 months, administrative fine of RUB 30,000	09/07/2020 Aleyskiy Town Court of the Altai Region		1,000
10.	33783/20 23/07/2020	**Mikhail Dmitriyevich YADYKIN** 2001	Gilmanov Mansur Idrisovich Podolsk	administrative detention of 12 days	26/06/2020 Moscow City Court	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - unlawful (unjustified) arrest on 22/06/20 (see Frumkin v. Russia, no. 74568/12, §§ 147-152)	3,900
11.	37961/20 10/08/2020	**Inna Valeryevna STEBLINA** 1970		administrative fine of RUB 10,000	14/11/2019 Moscow City Court	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 12/06/2019 in excess of 3 hours for the sole purpose of drawing up a record of administrative offence (raised in the administrative proceedings). Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Manifestation in support of I. Golunov, in Moscow on 12/06/2019; Article 20.2 § 6.1 of CAO; fine of RUB 10,000; Moscow City Court 14/11/2019	3,900

[1] Plus any tax that may be chargeable to the applicants.